

TENTATIVE RULING(S) FOR August 19, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2513296

Quintana vs DG Premium Brands LLC

TENTATIVE RULING(S):

Defendant DG Premium Brands, LLC moved to stay this action pending resolution of the putative class action in Los Angeles Superior Court, *Diaz v. Seven for All Mankind, LLC and DG Premium Brands, LLC*, Case No. 24STCV17062.

In opposition, Plaintiff argued the motion is moot because the *Diaz* action has settled.

On August 13, 2026, Defendant filed a reply conceding that the settlement of the *Diaz* action renders the motion moot. Defendant further states that the settlement paperwork remains in process and is expected to be completed by the date of the hearing on this motion or shortly thereafter.

Accordingly, Defendant requests that the Court either (1) deny the motion without prejudice or (2) continue the hearing to September 9, 2026, or a later date.

Having considered the parties' submissions, the Court denies the motion without prejudice.